

SENATE No.

The Commonwealth of Massachusetts

PRESENTED BY:

William J. Driscoll, Jr.

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to fire safety in college communities.

PETITION OF:

NAME:

William J. Driscoll, Jr.

DISTRICT/ADDRESS:

Norfolk, Plymouth and Bristol

SENATE No.

By Mr. Driscoll, a petition (accompanied by bill) (subject to Joint Rule 12) of William J. Driscoll, Jr. for legislation relative to fire safety in college communities. Public Safety and Homeland Security.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to fire safety in college communities.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 73 of the General Laws, as appearing in the 2024 edition, is hereby
2 amended by inserting the following new section:

3 Section 21. Fire Safety and Response

4 (a) For the purposes of this section, the following terms shall have the following
5 meaning:

6 (1) “Host community” shall mean any city or town in the Commonwealth that contains a
7 campus of a public college or university that owns, operates, or controls on-campus student
8 dormitories or other residential housing facilities.

9 (2) “Residential public institution of higher education” shall mean a public college or
10 university within the Commonwealth that provides on-campus housing for enrolled students,
11 including but not limited to the University of Massachusetts system and state universities.

(3) “Industry standards” shall mean the staffing and response requirements set forth in National Fire Protection Association (NFPA) Standard 1710 or any successor standard.

(4) “Eligible fire staffing costs” shall mean salaries, overtime, training, and benefits necessary to achieve compliance with industry standards.

(b) (1) Each host community shall annually certify its staffing needs to the secretary of public safety and security based upon student residential population, call volume associated with campus housing, residential density, and other relevant risk factors.

(2) The commonwealth shall aim to ensure that fire departments in host communities have sufficient personnel to meet industry standards for alarm response related to residential public institutions of higher education, including meeting industry standards for four firefighters on all engine companies and response times consistent with NFPA 1710.

(3) Municipalities hosting public colleges or universities that do not provide on-campus residential housing shall not be subject to the requirements of this clause.

(c) There shall be an established and set up on the books of the commonwealth a separate fund to be known as the Host Community Fire Safety Fund, which shall be used exclusively to support and reimburse fire departments within host communities for eligible fire staffing costs.

(d) The Host Community Fire Safety Fund shall be funded by (i) a one-time fee on entering students at each residential public institution of higher education, (ii) additional fees collected by residential public institutions of higher education for the purposes of fire safety and fire response (iii) any appropriations authorized by the general court specifically designated to be

credited to the fund, (iv) gifts, grants, and donations from public or private sources; (v) available federal grants and other funding opportunities, and (vi) any interest earned from the fund.

(e) There shall be a one-time fee assessed on each student entering a residential public institution of higher education for either a full- or part-time course of study, provided that colleges and universities may waive such fee for students enrolling in a full- or part-time course of study that have completed at least one semester at a different residential public institution of higher education.

(f) The secretary of public safety and security shall promulgate rules and regulations for the expenditure of money from this fund, including setting the rate for the fee required by clause (e) and for reimbursement of host communities.

(g) The secretary of public safety and security shall distribute funds to host communities no later than September 1 of each year. The secretary shall file a report annual on the implementation and administration of this section to the clerks of the house and senate, and the house and senate chairs of the joint committee on public safety and homeland security.

SECTION 2. Section 1 of this act shall be effective July 1 of the year following its enactment.